

SENATE No. 1083

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to rape by an officer.

PETITION OF:

NAME:

James B. Eldridge

DISTRICT/ADDRESS:

Middlesex and Worcester

SENATE No. 1083

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 1083) of James B. Eldridge for legislation to clarify the definition of “control” to include supervising a person under the age of 18 who is in a law enforcement training program and rape by an officer. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to rape by an officer.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 22 of Chapter 265 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after the first sentence the following sentence:-

3 For the purposes of this subsection, “control” shall include, but not be limited to,
4 supervising a person under the age of 18 who is in a law enforcement training program;
5 interacting with a person being questioned, investigated or detained; communicating the power
6 to charge or arrest a person, whether explicitly or implicitly, regardless of whether such power
7 could lawfully be exercised; or otherwise exercising or attempting to exercise coercion or
8 influence while acting under color of law.